1951

F
FAR EASTERN DEPARTMENT

JAPAN

48
FJ 1022/192

FROM

Sir O. Franks.
Washington.

No. 935
Dated 30th March 1951.
Received in Registry 31st March 1951.

Japanese Peace Treaty: information concerning Chinese participation in the Treaty.

Repted Singapore and Peking.

REFERENCES

MINUTES

(A) Sir O. Franks (Wash) No 936 of 30th March 1951.

Both Tels. copied to Dept.

W.M. Maddock
3/4.

Reptd Further action has been taken in F.O. tels Nos 519 & 520 of 3rd April to Peking.

Col. Staff 4/4

4/4.

(B) F.O. Minute (M Johnston) dated 3rd April.

10/4

? Print Washington Tels. nos. 935 and 936 and F.O. Tels. nos. 519 and 520 vol. only.
39451 already.

W.M. Maddock
22/5.

(Print)
Japan vol only

(How disposed of)
(J) P.T. Dept. o/c FJ 1022/192
PWA) - " April 3rd
Tel) Peking No 520 April 3rd

(Action completed)	(Index)
5/4	Comp. 25/6/51

1022

1951

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FJ 1022/192

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(Illegible) 4/4

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39451

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CATS 22.v. 22/5.

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(A) " " April 3rd
(Tel.) Peking No 520 April 3rd

(Action completed) 5/4

(Index) 25/6/51

1022

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FJ 1022/192

49

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Cypher/OTP

FOREIGN OFFICE AND WHITEHALL SECRET DISTRIBUTION

FROM WASHINGTON TO FOREIGN OFFICE

Sir O.Franks. D. 5.35 p.m. 30th March, 1951.

No.935

30th March, 1951. R. 2.51 a.m. 31st March, 1951.

PRIORITY

SECRET

Addressed to Foreign Office telegram No.935 of 30th March.

Repeated for information to Tokyo

and Saving to Singapore and Peking

My immediately preceding telegram: Japanese Peace Treaty: Chinese Participation.

I then handed to Dulles a short aide memoire based on the first paragraph of your telegram No.1178. I said that with regard to Chinese participation we had two main considerations in mind. In the first place we had recognised the Peking Government and we had to keep the record straight. I realised that the United States was in a different position. There was however a separate consideration which seemed to me to have substantial weight in itself. It was of the highest importance that Japan should be given a good start as a member of the international community and a good chance to make her own way in the world. Japan's economic relations with the Chinese mainland has always been one of the major elements in securing her economic viability. As far as could be foreseen the Peking Government was likely to remain in control of the Chinese mainland. It would be a heavy responsibility to cut Japan off from contact with mainland China.

2. Dulles asked whether we thought there was any possibility that the Peking Government would, in fact, accept an invitation to participate. I replied that we thought there was little; but at any rate that if we made the effort the Japanese could not later lay the blame at our door.

3. Dulles, emphasising that he was not giving official views, said that his personal thought was that he would not wish to exclude any country which had been at war with Japan from signing the treaty. But our proposal had obvious practical difficulties for governments not in relation with Peking.

/even if .....

MAR 31 1951

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FJ 1022/192

49 F

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Cypher/OTP

FOREIGN OFFICE AND WHITEHALL SECRET DISTRIBUTION

FROM WASHINGTON TO FOREIGN OFFICE

Sir O.Franks. R. 5.35 p.m. 30th March, 1951.

No.835
30th March, 1951. R. 2.51 a.m. 31st March, 1951.

PRIORITY
SECRET

Addressed to Foreign Office telegram No.835 of 30th March.
Repeated for information to Tokyo
and Saving to Singapore and Peking

My immediately preceding telegram: Japanese Peace Treaty: Chinese Participation.

FJ 1022/

I then handed to Dulles a short aide memoire based on the first paragraph of your telegram No.1178. I said that with regard to Chinese participation we had two main considerations in mind. In the first place we had recognised the Peking Government and we had to keep the record straight. I realised that the United States was in a different position. There was however a separate consideration which seemed to me to have substantial weight in itself. It was of the highest importance that Japan should be given a good start as a member of the international community and a good chance to make her own way in the world. Japan's economic relations with the Chinese mainland has always been one of the major elements in securing her economic viability. As far as could be foreseen the Peking Government was likely to remain in control of the Chinese mainland. It would be a heavy responsibility to cut Japan off from contact with mainland China.

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MAR 31 1951

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even if these difficulties could be overcome he would be reluctant to embark on an exercise which might involve obstruction and delay since a Japanese Peace Treaty was now of the highest urgency. He would be grateful if we could supplement our views by practical suggestions about how an approach could be made to Peking and how the dangers of any obstruction and delay could be avoided.

4. In regard to Formosa Dulles said that if our view were accepted without modification, might the problem become one of purely domestic Chinese concern after the conclusion of a peace treaty. He would be reluctant to see this happen. Formosa was still on the agenda of the Political Committee of the Assembly and he thought it important that Formosa should remain in some sense a matter of international concern. Last September we were both in agreement on this view and he supposed this was still so. The proposal relating to Formosa in the original seven point formula had not been included in the United States draft treaty because it was thought better not to force the question on the United Nations at a time when it might be "too hot to handle". Our formula however might preclude the United Nations from dealing with the matter.

5. Please see my immediately following telegram: to Foreign Office only.

Foreign Office please repeat to Tokyo and Saving to Singapore and Peking as my telegrams Nos. 20, 11 and 13 respectively.

[Repeated to Tokyo and Saving to Singapore and Peking].

ADVANCE COPIES

Private Secretary.
Sir W.Strang.
Mr. R.H.Scott.
Head of Japan and Pacific Department.

T T T T

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Mr. R.H.Scott.
Head of Japan and Pacific Department.

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Cypher /OTP

FOREIGN OFFICE AND WHITEHALL (SECRET) 51

DISTRIBUTION

FROM WASHINGTON TO FOREIGN OFFICE

Sir O. Franks

No. 936.

30th March 1951.

D. 4.55 p.m. 30th March 1951.

R. 10.42 p.m. 30th March 1951.

PRIORITY

SECRET

FJ 1022/192 A

My immediately preceding telegram.

Japanese Peace Treaty and Pacific Security.

As we were leaving Dulles again emphasised his desire to reason things out with us. The problems we were discussing would normally have been dealt with around the table at a peace conference. Although a conference of that kind was not possible at this stage he hoped that Anglo-United States discussions could be held in the same mood and atmosphere. He hoped that neither side would take up rigid positions from which they were not prepared to recede but that we could reach a common position on the basis of reasoned discussion.

ADVANCE COPIES:-

Private Secretary

Sir W. Strang

Mr. R.M.Scott

Head of Japan and Pacific Department

-o-o-o

MAR 31 1951

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[redacted] telegram is of particular security and should be retained [redacted] the addressee receives and not passed on [redacted]

Under No

FOREIGN OFFICE AND WHITEHALL (SECRET) [redacted]

DISTRIBUTION

[redacted] FROM WASHINGTON TO FOREIGN OFFICE

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ADVANCE COPIES:-

Private Secretary

Sir W. Strang

Mr. R.H.Scott

Head of Japan and Pacific Department

-0-0-0

MAR 31 1951

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CYPHER

OUT FILE

Registry No. FJ 1022/192

~~SECRET~~ SECRET

~~PRIORITY~~ PRIORITY

~~with~~ without

Draft.

PEKING

Telegram.

No. 520

(Date) 3-4-51

Repeat to :—

Saving to:

WASHINGTON 1656 Saw

TOKYO 119 Saw FLAG B

SINGAPORE 226 Saw

MOSCOW 172 Saw

~~Decode~~

~~XXX~~

Cypher.

Distribution :—

Foreign Office and Whitehall Secret.

C.A.E. Johnston 3 iv.

RECEIVED IN C.R. 4-APR 1951

Copies to : SENT TO D.P.C.

NOTHING TO BE WRITTEN IN THIS MARGIN

(35268) Wt. 40336-200 125m 2/50 G.S.S.

2.55p 3/4/51

4/4

(Date) 3/4/19 52

Despatched 2.48a M.

[Security classification —if any] SECRET

Addressed to PEKING

telegram No. 520 (date) 3/4

repeated for information Saving to WASHINGTON, TOKYO, SINGAPORE and MOSCOW.

My immediately preceding telegram [3rd of 3] Japanese Peace Treaty.

Saw Disposal of Formosa.

For your own information Cabinet decided on approach referred to in paragraph 1 of my immediately preceding telegram after rejecting two other possible courses:

(a) That Japan cede Formosa to China with a rider to the effect that, having regard to desirability of awaiting general Far Eastern settlement, this clause did not prejudice question of what Chinese authority was entitled to exercise sovereignty over Formosa; and

(b) That Japan renounce her sovereignty without specifically ceding Formosa to China, which is Dulles's original proposal but would be contrary to Cairo and Potsdam policy and would allow Formosa to become a res nullius until its future sovereignty could be established.

2. In order to meet Dulles's point about General Assembly, we are considering formula on following lines, which could be inserted in an interpretative protocol or minute:

/ Japan

CYPHER

OUT FILE

Registry No. FJ 1022/192

SECRET

Draft.

PEKING

Telegram.

No. 520

(Date) 3-4-51

Repeat to :—

Saving to:

WASHINGTON 1656 Saw

TOKYO 119 Saw FLAG B

SINGAPORE 226 Saw

MOSCOW 172 Saw

Cypher.

Distribution :—

Foreign Office and Whitehall Secret.

C.A.H. Johnston 3.iv.

RECEIVED IN C.R. 4-APR 1951

Copies to :

SENT TO D.P.C.

PRIORITY

(Date) 3/4 19 52

Despatched 2.48 p M.

[Security classification —if any] SECRET

Addressed to PEKING

telegram No. 520 (date) 3/4

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/ Japan

NOTHING TO BE WRITTEN IN THIS MARGIN

(28556) Wt. 40336-300 125m 2/50 G.S.S.

2.55p 3/4/51

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Japan cedes Formosa to China, but as problem is on agenda of Political Committee of General Assembly, signatories must reserve their respective positions regarding interpretation of this clause pending outcome of discussion by General Assembly.

3. I shall be grateful for your observations urgently.

53

R45
3/4.

NOTHING TO BE WRITTEN IN THIS MARGIN

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53

245
3/4

NOTHING TO BE WRITTEN IN THIS MARGIN

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FJ 1022/192 OUT FILE

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Cypher/OTP and
By Confidential Bag

FOREIGN OFFICE AND WHITEHALL SECRET DISTRIBUTION

FROM FOREIGN OFFICE TO PEKING

No.520
3rd April, 1951. D. 2.48 a.m. 4th April, 1951.

PRIORITY
SECRET

Addressed to Peking telegram No.520 of 3rd April
Repeated for information Saving to Washington No.1656
Tokyo No.119
Singapore No.226
Moscow. No.172.

My immediately preceding telegram [of 3rd April].

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2. In order to meet Dulles' point about General Assembly, we are considering formula on following lines, which could be inserted in an interpretative protocol or minute:

Japan cedes Formosa to China, but as problem is on

/agenda of

FT 1022/172 OUT FILE

[This telegram is of particular [illegible] and should be retained by the authorised recipient and passed on]

Cypher/OTP and
by Confidential Bag [illegible]

FROM FOREIGN OFFICE TO PEKING

No.520
3rd April, 1951. D. 2.48 a.m. 4th April, 1951.

PRIORITY
SECRET

Addressed to Peking telegram No.520 of 3rd April
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Tokyo No.119
Singapore No.226
Moscow. No.172.

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/agenda of

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SECRET

Foreign Office telegram No.520 to Peking

agenda of Political Committee of General Assembly, signatories must reserve their respective positions regarding interpretation of this clause pending outcome of discussion by General Assembly.

3. I shall be grateful for your observations urgently.

k k k

[redacted]

Foreign Office telegram No. [redacted] to Paris

agenda of Political Committee of General Assembly, signatories must reserve their respective positions regarding interpretation of this clause pending outcome of discussion by General Assembly.

3. I shall be grateful for your observations urgently.

k k k

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put with ppc

F 3102 | 112 (B)

SECRET

JAPANESE PEACE TREATY

CHINESE PARTICIPATION AND DISPOSAL OF FORMOSA

56

FLAG A

With reference to Sir O. Franks' conversation with Mr. Dulles on these subjects on the 30th March (Washington telegram No. 935), I submit two draft telegrams to Peking asking for Mr. Lamb's views on

(a) the practical problems of an approach to the Central People's Government, and

(b) as regards Formosa, on a proposal for meeting Mr. Dulles' point about the United Nations interest without prejudicing the Cabinet decision that Formosa should be ceded to China in the Treaty.

2. The first draft has been agreed by Northern Department and the Commonwealth Relations Office, the second by Mr. Fitzmaurice and United Nations (Political) Department, and both by China and Korea Department.

C.H. Johnston

(C.H. Johnston)
3rd April, 1951.

RLS
3/4.

2 tels sent
3/4

Fo. to Peking 519 & 520
4 3/4.

put with pps.

F 3022 | 192

SECRET

JAPANESE PEACE TREATY

CHINESE PARTICIPATION AND DISPOSAL OF FORMOSA

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3rd April, 1951.

RLS
3/4.

2 tels sent
3/4

Fo to Peking 519 & 520
4 3/4.

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